



CHAPTER xxxix.

An Act to confer further powers upon the Corporation of the county borough of Hastings with respect to the water supply to the borough and to authorise the Corporation to construct additional waterworks and borrow money and to make provision as to the audit of the accounts of the Corporation and for other purposes.

A.D. 1911.

[29th June 1911.]

WHEREAS the county borough of Hastings is a municipal borough under and subject to the Municipal Corporations Act 1882 and is also a county borough under the Local Government Act 1888 and the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council are the sanitary authority for the district of the borough under the Public Health Act 1875:

And whereas the Corporation are the owners of the existing pumping stations and works constructed at Forewood Crowhurst and Pebsham beyond the borough for the supply of water to the borough but the lands upon which such works have been constructed are subject to leases agreements and licences the terms of some of which are about to expire and it is therefore expedient that the Corporation should be empowered to acquire and hold such lands compulsorily for the purposes of their water undertaking as by this Act provided:

And whereas the supply of water from the existing waterworks of the Corporation is inadequate to meet the growing demands of the inhabitants within the borough and it is expedient that the Corporation should be empowered to acquire additional lands adjoining the present lands and works and to construct and maintain thereon the further works by this Act authorised:

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And whereas the powers of the Corporation are subject to the provisions now in force of the several Public Acts relating to municipal corporations and public health and also to the provisions of the following local Acts of Parliament and Provisional Orders confirmed by Parliament (that is to say):—

The Hastings Paving Act 1832;
 The Hastings Improvement Act 1885;
 The Hastings Corporation Act 1900;
 The Local Government Board's Provisional Orders confirmed in 1851 1875 and 1897:

And whereas the sum of the balances of moneys borrowed under the provisions of the before-mentioned Acts and Orders and with the sanction of the Local Government Board or other Government authority after allowing for provision already made by way of sinking fund is five hundred and fifty thousand four hundred and forty-nine pounds fourteen shillings and eight-pence and it is expedient that the Corporation should be empowered to borrow further money for the purchase of lands and rights and for the construction of the works by this Act authorised and otherwise for the purposes of this Act:

And whereas plans and sections showing the lines situations and levels of the additional waterworks by this Act authorised and also a book of reference to such plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken compulsorily or used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the eastern division of the county of Sussex and are in this Act referred to as “the deposited plans” “the deposited plans and sections” and “the deposited book of reference”:

And whereas estimates have been prepared by the Corporation for the purchase of lands and for the execution of the works authorised by this Act and such estimates are as follows:—

£ s. d.

For the purchase of the lands upon which			
the existing pumping stations are constructed at Forewood Crowhurst and			
Pebsham and for the additional lands			
and the rights as to mains and access			
to works -	-	27,995	0 0
For the construction of the further water-			
works authorised by this Act -	-	49,834	0 0

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at meetings held respectively on the fourth day of November and ninth day of December one thousand nine hundred and ten after ten clear days' notice by public advertisement in each case of such meetings and of the purpose thereof in the *Hastings and Saint Leonards Weekly Mail and Times* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meetings respectively resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and rates :

And whereas the said resolutions were published twice in the said *Hastings and Saint Leonards Weekly Mail and Times* and have received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the third day of February one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Hastings Corporation (Water and Finance) Act 1911.* Short title.

[Ch. xxxix.] *Hastings Corporation (Water and Finance) Act, 1911.* [1 & 2 GEO. 5.]

A.D. 1911.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Purchase of Lands upon which existing
Works constructed Further Lands and
Works and Borrowing Powers.

Part III.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely:—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 inclusive of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts; and

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

Interpretation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

“The borough” means the municipal and county borough of Hastings;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council of the borough;

“The council” means the council of the borough;

“The town clerk” and “the borough treasurer” mean respectively the town clerk and the treasurer for the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“Borough fund” “borough rate” “district fund” and “general district rate” mean respectively the borough

fund borough rate the district fund and general district rate of the borough; A.D. 1911.

“The Act of 1885” means the Hastings Improvement Act 1885;

“The Act of 1900” means the Hastings Corporation Act 1900;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Prescribed period” means the period fixed by this Act or by the Local Government Board as regards loans sanctioned by them with reference to the repayment of moneys borrowed under this Act and with the sanction of the said Board;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

Words and expressions to which meanings are assigned by the Public Health Act 1875 and the Public Health Acts Amend-

A.D. 1911. ment Act 1890 shall have in this Act the same respective meanings unless otherwise expressly provided.

Limits of Act.

5. This Act so far as the provisions relating to water are concerned shall apply throughout the limits within which the Corporation are authorised to supply water and otherwise shall apply exclusively to the borough.

PART II.

PURCHASE OF LANDS UPON WHICH EXISTING WORKS CON- STRUCTED FURTHER LANDS AND WORKS AND BORROWING POWERS.

Power to take lands upon which existing pumping stations constructed.

6. Subject to the provisions of this Act the Corporation may purchase take hold and use the lands delineated and shown upon the deposited plans and described in the deposited book of reference upon which lands the existing pumping stations and works at Forewood Crowhurst and Pebsham are constructed together with all rights and easements connected therewith and may also purchase enter upon take hold and use the additional lands (adjoining or contiguous to the aforesaid lands) also delineated and shown upon the deposited plans and described in the deposited book of reference together with all rights and easements the sites whereof are also delineated and shown upon the deposited plans and described in the deposited book of reference and may construct thereon the further works by this Act authorised The lands before referred to are as follows:—

(A) Certain lands situate in the parish of Catsfield in the county of Sussex being the fields or enclosures numbered 137 and 138 on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) belonging or reputed to belong to the trustees of the estate of the late Philip Oxenden Papillon bounded on the north by Stumblets Wood and the parish boundary dividing the parishes of Catsfield and Battle on the east by the Powder Mill stream on the west by the bridle road leading from Battle through Pepperering Eye to Catsfield Place and on the south by the fields or enclosures numbered 343 345 and 346 on the aforesaid Ordnance Survey map:

(B) Certain lands situate in the parish of Crowhurst in the county of Sussex being part of the field or enclosure

numbered 362 and the field or enclosure numbered 363 on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) belonging or reputed to belong to the trustees of the estate of the late Philip Oxenden Papillon bounded on the north by the field or enclosure numbered 361 on the aforesaid Ordnance Survey map on the south by Combe Haven and on the east and west by the fields or enclosures numbered respectively 364 and 357 on the aforesaid Ordnance Survey map: A.D. 1911. —

- (c) Certain lands situate partly in the parish and borough of Bexhill and partly in the parish and borough of Hastings in the county of Sussex being a field or enclosure numbered 11 in the parish and borough of Hastings and numbered 377 in the parish and borough of Bexhill on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) belonging or reputed to belong to the trustees of the estate of the late Philip Oxenden Papillon bounded on the north by the field or enclosure numbered 9 in the parish and borough of Hastings and the field or enclosure numbered 378 in the parish and borough of Bexhill on the south and west by the fields or enclosures numbered 428 in the parish and borough of Bexhill and numbered 12 and 8 in the parish and borough of Hastings and on the east by the field or enclosure numbered 8 in the parish and borough of Hastings on the aforesaid Ordnance Survey map.

7. Subject to the provisions of this Act the Corporation may in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference make construct and maintain the following works shown on the deposited plans and sections (that is to say):— Power to construct further works.

Work No. 1 A pumping station with well or wells adits headings and other works and conveniences connected therewith to be situated in the parish of Catsfield in the county of Sussex on the west side of Forewood and situated in the field numbered 137 on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) of the said parish:

Work No. 2 A service reservoir and cottages and other works and conveniences connected therewith to be situated in the parish of Catsfield in the county of Sussex on the

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south-east side of the bridle road leading from Battle to Catsfield Place and in the field numbered 138 on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) of the said parish:

Work No. 3 A conduit consisting of one or more lines of pipes to be situated in the parish of Catsfield in the county of Sussex commencing at Work No. 1 and terminating in the before-mentioned parish of Catsfield at the service reservoir or Work No. 2:

Work No. 4 A conduit consisting of one or more lines of pipes to be situated in the parishes of Catsfield Crowhurst and Hollington Rural in the county of Sussex commencing at Work No. 1 and terminating in the parish of Hollington Rural in the existing Filsham pumping station of the Corporation:

Work No. 5 A pumping station with wells adits headings and other works and conveniences connected therewith to be situated in the parish of Crowhurst in the county of Sussex to the south-west of Adams' Farm in the fields or enclosures numbered 362 and 363 on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) of the said parish:

Work No. 6 A conduit consisting of one or more lines of pipes to be situated in the parishes of Crowhurst and Hollington Rural in the county of Sussex commencing at Work No. 5 and terminating in the parish of Hollington Rural in the existing Filsham pumping station of the Corporation:

Work No. 7 A pumping station with wells adits headings and other works and conveniences connected therewith to be situated in the parish and borough of Bexhill and in the parish and borough of Hastings in the county of Sussex on the north-west side of the main road leading from Hastings to Bexhill in the fields numbered 377 in the parish of Bexhill and 11 in the parish of Hastings on the $\frac{1}{2500}$ Ordnance Survey map (1899 edition) of the said parishes:

Work No. 8 A conduit consisting of one or more lines of pipes to be situated in the parishes and boroughs of Bexhill and Hastings in the county of Sussex commencing at Work No. 7 and terminating in the borough of Hastings in the existing main of the Corporation in Bexhill Road:

Work No. 9 A conduit consisting of one or more lines of pipes to be situated in the parish of Hollington Rural and the parish and borough of Hastings in the county of Sussex commencing in the existing Filsham Pumping Station of the Corporation and terminating in the existing Maze Hill Reservoirs of the Corporation: A.D. 1911.

Work No. 10 A conduit consisting of one or more lines of pipes to be situated in the parish and borough of Hastings in the county of Sussex commencing in the existing main of the Corporation at the junction of Mount Pleasant Road and Priory Road and terminating in the existing main of the Corporation at the junction of Battle Road and Sedlescombe Road South.

In addition to the works hereby expressly authorised the Corporation may upon the said lands make and maintain all such cuts channels tunnels adits pipes conduits culverts drains shafts wells headings bores water towers gauges filter beds tanks valves banks walls embankments approaches telegraphs telephones and other means of electric communication engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them:

Provided always that the telegraphs telephones and other means of electric communication constructed under the powers of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

8. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream canal or bridge no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections. Power to deviate.

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Period for compulsory purchase of lands.

Period for completion of water-works.

Temporary discharge of water into streams.

Power to hold lands for protection of waterworks.

New works to be part of undertaking.

9. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Part of this Act shall cease after the expiration of five years from the passing of this Act.

10. If the works authorised by this Act are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof and otherwise in relation thereto shall cease except as to so much thereof respectively as shall be then completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant as and when occasion may require.

11.—(1) For the purpose of sinking any well shaft or bore constructing enlarging extending repairing cleansing or examining any well shaft bore adit aqueduct conduit or other work authorised by this Act the Corporation may cause the water in any such well shaft bore adit aqueduct conduit or other work to be temporarily diverted into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of such compensation to be settled in the case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

12. The Corporation may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Corporation shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks undertaking.

13. The works by this Act authorised to be constructed shall for all purposes whatsoever (inclusive of water rates rents and charges) form part of the waterworks undertaking of the Corporation and the Corporation may use the water collected

diverted and taken by means of the same for the purpose of supplying water to and within the borough. A.D. 1911.

14. And whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Corporation the portions only of the premises so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may be required to sell parts only of certain lands and buildings.

15. The Corporation may from time to time for any of the purposes of their water undertaking purchase by agreement any lands not exceeding twenty acres in addition to the lands which they are authorised to take by compulsion but the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands or use any of such lands for any building except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks undertaking :

Power to take additional lands by agreement.

Provided that the Corporation shall not construct any works for taking or intercepting water from any lands acquired by them after the passing of this Act unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting powers of Corporation to abstract water.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation

Power to take easements &c. by agreement.

A.D. 1911. any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
acquire ease-
ments only.

17. The Corporation may in lieu of acquiring any land for the purposes of such of the works authorised by this Act as are intended to be placed and maintained underground acquire such easements and rights in such lands as they may require for the purpose of making maintaining using cleansing repairing renewing and enlarging the said works or of obtaining access thereto and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts:

Provided that as regards any lands taken or used by the Corporation for the purpose of such works where they are respectively laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation:

Provided also that except as to land forming part of a street nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

18. The proceeds of the sale of any superfluous lands of the Corporation and any other moneys received on capital account under the powers of this Act shall be distinguished as capital in the accounts of the Corporation and shall be applied in discharge of moneys borrowed by the Corporation under this Act for waterworks purposes but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Any moneys discharged out of the proceeds of any such sale shall not be re-borrowed.

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Proceeds of sale of surplus lands to be treated as capital.

19. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting or disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to Corporation of connecting or disconnecting meters.

20. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the town hall in the borough.

Notice of discontinuance.

21. The Corporation may in addition to any moneys they are now authorised to borrow from time to time borrow at interest for the following purposes such moneys as they may from time to time think requisite for those respective purposes not exceeding the following sums each of such sums or such part thereof respectively as may from time to time be borrowed to be repaid from time to time within the periods set opposite to the same respectively in this section (that is to say):—

Power to borrow.

- (1) For the purchase of the lands upon which the existing pumping stations are constructed at Forewood Crowhurst and Pebsham and for the additional lands and the easements and rights as to mains and access to works twenty-seven thousand nine hundred and ninety-five pounds—sixty years from the date of borrowing:
- (2) For the engine houses at Forewood Crowhurst and Pebsham pumping stations service reservoir wells adits

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and headings twenty-seven thousand nine hundred and forty-eight pounds—fifty years from the date of borrowing:

(3) For the laying of water mains and pipes twelve thousand three hundred and sixty-four pounds—forty years from the date of borrowing:

(4) For engines and pumping plant fencing road making &c. nine thousand five hundred and twenty-two pounds—thirty years from the date of borrowing:

(5) For the costs of this Act such sum as is necessary for the purpose—five years from the passing of this Act.

The Corporation may also with the consent of the Local Government Board borrow at interest from time to time such further sums as the Corporation may require for any of the purposes of this Act and any of such further sums so borrowed shall be repaid within such period not exceeding sixty years as the Local Government Board may in every case allow. In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenues of the water undertaking and the district fund and the general district rate or either of them.

The provisions of this subsection shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

Mode of payment off of money borrowed.

22. The Corporation shall pay off all moneys borrowed by them on mortgage under the provisions of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the time of borrowing the sum in respect of which payment is made.

Sinking fund.

23.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking

fund is formed A sinking fund so formed is herein- after called a "non-accumulating sinking fund"; or A.D. 1911.

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investment of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

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(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of

which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine. A.D. 1911.

24.—(1) The Corporation shall have power—

Power to
re-borrow.

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

25. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the

Method of
raising
money.

A.D. 1911. marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Certain regulations of Public Health Act as to borrowing not to apply.

26. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Power to use one form of mortgage for all purposes.

27.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid

out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted. A.D. 1911.
—

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

A.D. 1911.

Application
of borrowed
moneys.

28. All moneys from time to time borrowed by virtue of this Act shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed and to which capital is properly applicable excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Appoint-
ment of
receiver.

29.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Annual
return to
Local
Government
Board.

30.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the

event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1911.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

31. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

32. Nothing in this Act shall prejudicially affect any charge on any of the rates or revenues of the Corporation by way of mortgage or otherwise existing at the date of the passing of this Act and every mortgagee or incumbrancer or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the property subject to his charge as if this Act had not been passed. Saving of charges.

33. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation not to regard trusts.

A.D. 1911. Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any of such money.

Inquiries by
Local
Government
Board.

34.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

PART III.

MISCELLANEOUS.

Audit of
accounts of
Corporation.

35.—(1) From and after the thirty-first day of March one thousand nine hundred and twelve sections 25 26 and 27 of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875 shall cease to apply to the accounts of the Corporation or of the borough treasurer or of the officers of the Corporation and all accounts of the Corporation and of the borough treasurer and the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of any county borough or district or any parish council shall be audited by a district auditor appointed by the Local

Government Board in like manner as accounts of an urban authority and their officers are audited under sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the borough and all ratepayers and owners of property in the borough shall have the like rights and there shall be the same appeal as in the case of that audit Provided that for the purposes of this section the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888. A.D. 1911.

(2) Nothing in subsection (1) of this section shall apply to the audit of the accounts of the Corporation for the financial year ending the 31st day of March 1912.

(3) The Corporation may out of the borough fund—

(A) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings; and

(B) Pay the reasonable expenses of the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

36. Informations or complaints under or for the breach of any of the provisions of this Act may be laid and made by the

Informations
by whom to
be laid.

A.D. 1911. town clerk or by any officer of the Corporation duly authorised in that behalf.

Incorporation of sections of Acts of 1885 and 1900.

37. The following sections of the Act of 1885 and of the Act of 1900 so far as the same are applicable are hereby incorporated with and shall apply to this Act as if the same were re-enacted namely:—

(1) Of the Act of 1885—

Section 263 (Service of notices on Corporation);

Section 264 (Damages and charges in case of dispute to be settled by justices);

Section 311 (Purchase of easements):

(2) Of the Act of 1900—

Section 111 (Compensation how to be determined);

Section 113 (Penalties in cases not otherwise provided for);

Section 117 (Powers of Act cumulative).

Repeal of certain sections of Acts of 1885 and 1900.

38. Sections 259 261 262 268 269 270 271 273 274 275 276 277 279 280 281 282 283 284 and 285 of the Act of 1885 and section 114 of the Act of 1900 are hereby repealed and from and after the passing of this Act the next following five sections of this Act are substituted and shall apply to the borough Provided that where any enactment repealed by this Act is mentioned or referred to in sections 107 and 110 of the Act of 1900 the said sections shall be read as if the corresponding provisions (if any) of this Act were therein mentioned or referred to and substituted for the repealed enactment And provided further that section 265 of the Public Health Act 1875 shall be and is hereby substituted for section 283 of the Act of 1885 which last-mentioned section is repealed by this section.

Saving for indictment &c.

39. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

40.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. A.D. 1911.
Authentica-
tion and
service of
notices.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

41. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provisions of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. As to appeal.

42. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of
penalties.

43. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not
disqualified.

44. For the protection of the Commissioners of Sewers for the levels within the rapes of Pevensey and Hastings in the county of Sussex (herein-after referred to as "the commissioners") the following provisions shall notwithstanding anything in this Act or the Acts referred to in or wholly or partially incorporated with this Act apply and have effect unless otherwise For protec-
tion of
Pevensey
Commis-
sioners of
Sewers.

A.D. 1911. agreed in writing between the commissioners and the Corporation
(that is to say):—

- (1) The Corporation shall not acquire or exercise any easement for the passage of boats barges or other vessels along any sewer belonging to or under the jurisdiction or management of the commissioners :
- (2) The Corporation shall not obstruct or interfere with the commissioners' right of casting way and passage of sixteen feet in width on each side of their several sewers except so far as may be necessary for laying beneath the surface thereof any conduits authorised by this Act and repairing cleansing altering and renewing the same and removing repairing cleansing altering or renewing any conduits or water pipes now used by the Corporation and the Corporation shall with all reasonable speed carry out and complete all such work of laying removing repairing cleansing altering and renewing and restore and make good the surface so as to cause as little obstruction as possible to the use by the commissioners and their servants of the said casting way and passage :
- (3) Every conduit or other work authorised by or under the provisions of this Act which shall cross any sewer drain sluice flop or other work belonging to or under the jurisdiction or management of the commissioners or any ditch draining any land within the jurisdiction of the commissioners shall be laid in such position and manner as not to impinge upon the waterway of or obstruct or impede the flow of water along or through any such sewer drain sluice flop or other work or ditch :
- (4) In case at any time hereafter the commissioners shall deem it necessary for the drainage of any of the lands within their jurisdiction to widen or deepen any such sewer drain sluice or flop at the point at which any such conduit or other work constructed by the Corporation shall cross the same and it shall be necessary in order to effect such widening or deepening that the position of any such conduit or other work shall be altered then the Corporation shall at their own

expense on reasonable notice in writing from the commissioners under the hand of their clerk with all reasonable speed make all such alterations in such conduit or other work and the abutments and supports thereof as the commissioners shall deem necessary to enable them to effect such widening or deepening : A.D. 1911.

- (5) For the purpose of repairing cleansing altering or renewing any conduit or water pipe now used by the Corporation or to be laid by them under the powers conferred by this Act for the purpose of conveying water from the existing pumping works at Forewood and Crowhurst and Works Nos. 1 and 2 authorised by this Act to the Filsham Pumping Station it shall be lawful for the Corporation to discharge the water in such conduit or water pipe into the commissioners' sewers but so only as not to damage the sides or banks of such sewers But the Corporation shall not divert the water referred to in the section of this Act the marginal note of which is "Temporary discharge of water into streams" into any sewer or drain belonging to or under the jurisdiction or management of the commissioners or so that it shall ultimately flow into any such sewer or drain except at such times as the commissioners by writing under the hand of their clerk may authorise but such authority shall not be unreasonably withheld :
- (6) The Corporation shall not commence any conduit or other work which shall or may pass over or under or in any manner interfere with any sewer drain sluice flop or other work or ditch herein-before referred to until the Corporation shall have given to the commissioners fourteen days' notice in writing of their intention to commence the same by leaving such notice at the office of the clerk of the commissioners with plans sections and other necessary particulars of the construction of the said work and until the commissioners shall have signified their approval of the same but if the commissioners fail to signify such approval or their disapproval or other reasonable direction within fourteen days after service of the said notice and delivery of the said plans sections and other particulars

A.D. 1911.

as aforesaid they shall be deemed to have agreed to the construction of the said works:

- (7) The Corporation shall comply with and conform to all reasonable directions and requirements of the commissioners in the execution and subsequent maintenance of the said works of the Corporation and shall provide by new altered or substituted works in such manner as the commissioners may reasonably deem necessary for the proper protection of and for preventing injury or impediment to or interference with any such sewer drain sluice flap or other work or ditch aforesaid and shall save harmless the commissioners against all and every expense to be occasioned thereby:
- (8) All such works (including any such new altered or substituted works as aforesaid) shall be executed to the reasonable satisfaction of the engineer or surveyor of the commissioners at the costs charges and expenses in all respects of the Corporation:
- (9) Save as provided in this section nothing in this Act shall in any way prejudice alter affect or interfere with the jurisdiction or any of the powers rights or privileges of the commissioners as existing immediately before the passing of this Act.

For protection of London Brighton and South Coast Railway Company.

45. For the protection of the London Brighton and South Coast Railway Company (herein-after referred to as "the Brighton Company") the following provisions shall have effect:—

- (1) All works executed in pursuance of this Act or of any Act incorporated therewith and involving interference with or in any way affecting the railways bridges roads approaches level crossings works lands and property of the Brighton Company (herein-after together referred to as "the railways of the Brighton Company") and all works of maintenance repair renewal and removal involving such interference or affection (the said works executed in pursuance of this Act or of any incorporated Act and the said works of maintenance repair renewal or removal being herein-after referred to as "the said works") shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Brighton Company (herein-

after referred to as "the engineer") and according to plans to be previously submitted to and approved by him in writing within one month after such submission or in case of difference as may be determined by arbitration in manner herein-after provided: A.D. 1911.

- (2) The said works shall be done by and at the expense of the Corporation who shall restore and make good to the reasonable satisfaction of the engineer any portion of the railways of the Brighton Company which may be disturbed or interfered with and the said works shall be carried out so as to cause as little injury as may be to the railways of the Brighton Company and so as not to cause any interference with the passage or conduct of traffic thereover. Provided nevertheless that if the engineer shall think it necessary that the said works or any of them shall be done or carried out by the Brighton Company and shall notify such desire to the Corporation the said works in respect of which the engineer shall have notified such desire shall be done or carried out by the Brighton Company accordingly at the cost of the Corporation and in accordance with the plans so approved or determined as aforesaid:
- (3) The Corporation shall bear and on demand pay to the Brighton Company all costs of the superintendence by the engineer of the said works when the same are done or carried out by the Corporation and all proper costs of watching lighting and protection of the railways of the Brighton Company during the carrying out of the said works but such superintendence by the Brighton Company shall not relieve the Corporation from liability for any accident which may be occasioned by or through the said works or by their contractors agents and workmen:
- (4) If any injury to or interruption of the traffic of the Brighton Company shall arise from or be in any way owing to the said works or to the bursting leakage or failure of any conduits mains pipes apparatus or works of the Corporation the Corporation shall make full compensation to the Brighton Company in respect thereof:

A.D. 1911.

- (5) The Corporation shall from time to time pay to the Brighton Company any additional expense which the Brighton Company may incur in effecting any repair renewal widening alteration or extension of the railways of the Brighton Company by reason of the existence of any conduits mains pipes apparatus or works of the Corporation in over upon across or under the railways of the Brighton Company :
- (6) The Brighton Company may at any time or times hereafter upon giving to the Corporation not less than seven days' notice thereof in writing signed by the engineer call upon the Corporation to divert or alter the level of any conduit main pipe apparatus or other work of the Corporation passing in over upon across or under or in any way affecting the railways of the Brighton Company so as to admit of any repairs renewals widenings alterations or extensions of the railways of the Brighton Company which they may think necessary without being liable to pay any compensation in respect thereof but the reasonable costs of any such diversion or alteration shall be borne and paid by the Brighton Company :
- (7) Notwithstanding anything contained in this Act or in any Act incorporated therewith the Corporation shall not enter upon take or use for any purpose the railways of the Brighton Company or any part thereof without the consent in writing of the Brighton Company first obtained :
- (8) Any dispute or difference which may arise between the Corporation and the Brighton Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer to be agreed upon between the Corporation and the Brighton Company or failing agreement by an engineer to be appointed by the Board of Trade on the application of the Corporation and the Brighton Company or either of them.

For protection of
Hastings
Tramways
Company.

46. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall for the purposes of this Act be read and

construed as if tramways and light railways were expressly mentioned therein. A.D. 1911.

47. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies' Managing Committee (herein-after respectively referred to as "the railway company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

For protection of South Eastern Railway Company and South Eastern and Chatham Railway Companies' Managing Committee.

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes culverts or other works in the exercise of the powers contained in this Act upon across over under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts or other works of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by such engineer in writing :

(B) All such works shall be done by and at the expense of the Corporation who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or tunnel of the railway company or over the approaches to any such bridge so far as the same may be disturbed or interfered with by or owing to any operations of the Corporation :

(C) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such bridges tunnels approaches viaducts works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :

(D) If the Corporation lay down any mains or pipes under or over any bridge tunnel or viaduct of the railway company they shall provide and maintain such stop-

A.D. 1911.

cocks on either side of such bridge tunnel or viaduct as in the opinion of the engineer of the Railway Company shall be necessary :

- (E) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any such mains culverts pipes or works in under or near to any bridge tunnel approach viaduct station lands works or property of the railway company the Corporation shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (F) The Corporation shall acquire only such an easement across over or under any of the railways works or property of the railway company as may be necessary for constructing or maintaining any of the works of the Corporation and shall pay to the railway company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :
- (G) If the railway company at any time or times hereafter of which they shall be the sole judges require to construct any additional or other works upon their lands or railways or to alter or repair their bridges viaducts or works upon across over or under which any of the works of the Corporation may have been constructed or laid the railway company may on giving to the Corporation fourteen days' notice in writing under the hand of their secretary or general manager for the time being and in case of emergency of which their engineer shall be the sole judge without any previous notice (in which case they shall give notice as soon as practicable) divert support or

carry the said works of the Corporation across over or under their lands bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversions supporting carrying or dealing with such works: A.D. 1911.

- (H) Except as in this section otherwise provided any dispute or difference which may arise between the railway company and the Corporation with reference to the provisions of this section or in any way arising there-out or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Corporation or either of them.

48. For the protection of the urban district council of Battle (in this section herein-after called "the district council") the following provisions shall unless otherwise agreed between the district council and the Corporation have effect:—

For protection of urban district council of Battle.

- (A) In case at any time after the Corporation shall have commenced to take water from the works at Catsfield authorised by this Act the water supply of the district council at their present pumping station shall be diminished by reason of the operations of the Corporation so as to be insufficient for the requirements of their district then immediately after notice in writing from the district council under the hand of their clerk the Corporation shall with all reasonable speed at their own expense make and thereafter maintain in working order all mains and works necessary for passing a supply of water from the Corporation's works in the parish of Catsfield to those of the district council near Powder Mill Lane:
- (B) The Corporation shall in such event as aforesaid so long as the Corporation shall use any of such works supply water through such mains to the district council gratuitously in such quantity as may be necessary to supplement the quantity of water that can actually be raised by reasonable pumping in twenty-four hours

A.D. 1911.

from the district council's said existing well near Powder Mill Lane so as to raise the total supply of the district council at the surface of such last-mentioned well to the total quantity necessary for the reasonable supply of the district of the district council not exceeding one hundred thousand gallons per diem of twenty-four hours:

- (c) In case of any deficiency of water in such total supply in any one day the district council shall be entitled to have such deficiency made good by the Corporation under the provision contained in subsection (B) hereof within twenty-four hours after receipt by the Corporation of notice thereof in writing from the clerk of the district council:
- (D) The aforesaid supplementary supply of water shall be delivered by the Corporation through the mains and works aforesaid into a reservoir or other receptacle to be provided by the district council at or adjacent to their aforesaid existing well at or near Powder Mill Lane (and at the level of the engine-house floor) and shall be of the same quality when it enters the mains and works mentioned in subsection (A) hereof as for the time being is supplied by the Corporation from the same sources for use within their own area of supply:
- (E) For the purpose of measuring the amount of water supplied by the Corporation the Corporation shall at their own expense construct maintain and keep in good repair and working order and renew when necessary at or near the point of abstraction of water from the Corporation's works at Catsfield suitable duplicate meters which shall at all reasonable times be open to the inspection and examination of the duly authorised officer of the district council and such meters shall be tested at the expense of the Corporation twice at least in every year by a competent engineer and a copy of the certificate of such engineer as to the result of each such testing shall be sent to the district council. The district council shall pay to the Corporation the sum of five pounds per annum as rent for such meters:

(F) In case and so long as the Corporation shall supply as
aforesaid to the district council as and when required
a sufficient quantity of water for the reasonable re-
quirements of the district of the district council the
Corporation and all persons authorised by them may
at all reasonable times enter upon the works of the
district council near Powder Mill Lane to examine
the same and any defects or wants of reparation then
and there found shall be repaired and made good
forthwith by the district council on notice in writing
being given in that behalf In case and so long as
the Corporation shall supply as aforesaid to the district
council as and when required a sufficient quantity of
water for the reasonable requirements for the district
of the district council the district council shall not
commit or permit waste of any description and will
prevent as far as possible all waste of water by their
consumers within their area of supply and in default
thereof the Corporation shall be entitled to exercise
and enforce in such area the same powers as to waste
of water as the Corporation is entitled to exercise in
its own area of supply :

A.D. 1911.

(G) The district council will not at any time hereafter do
or suffer to be done upon the works near Powder
Mill Lane or on any land now belonging to or which
may hereafter be acquired by the district council any
act or thing which may in any way lessen or other-
wise interfere with the quantity purity or flow of
water coming into the works of the Corporation at
Catsfield so long as the Corporation shall supply as
aforesaid to the district council as and when required
a sufficient quantity of water for the reasonable
requirements for the district of the district council :

(H) If any question or difference shall arise between the
Corporation and the district council under this section
as to the deficiency of the water obtained or properly
obtainable from the district council's said Powder Mill
Lane well or the quantity or quality of the water
supplied by the Corporation or as to the proper
execution or maintenance of the works for the con-
nexion of the two supplies herein-before provided for

A.D. 1911.

such question or difference shall be determined by an engineer to be agreed upon by the Corporation and the district council or failing agreement as shall be nominated by the President of the Institution of Civil Engineers on the application of either the Corporation or the district council and the decision of such engineer may be enforced in like manner as awards under the Arbitration Act 1889 can now by law be enforced.

Supply to
Hastings
and Battle
District
Councils.

49. The Corporation shall supply to the rural district councils of Hastings and Battle for domestic purposes from any mains of the Corporation for the time being situate in those districts respectively for distribution such quantity of water as the said councils respectively shall by reasonable notice in writing to the Corporation specify and agree to take and such water shall be supplied at such point or points on any such mains and on such terms and conditions and at such price as may be agreed between the Corporation and the said councils respectively or as failing agreement may be determined by a water engineer to be appointed on the application of either party by the Local Government Board and subject thereto in accordance with the provisions of the Arbitration Act 1889 Provided that the price to be paid by either of such councils under this section shall not exceed such sum as shall be equivalent to one shilling and eight pence in the pound on the net rateable value for poor rate purposes of the hereditaments in the district of such council which are for the time being supplied with such water and the amount to be supplied to each district shall not exceed twenty thousand gallons per day.

For protec-
tion of East
Sussex
County
Council.

50.—(1) The Corporation shall take and keep daily records of the quantity of water pumped at each of their pumping stations and separate records of the daily amount supplied by them within their limits of supply and in each place outside such limits to or in which a supply may from time to time be given by the Corporation and the Corporation shall once in each quarter forward to the clerk to the county council of East Sussex (herein-after called "the county council") copies of all such records.

(2) The medical officer of the county council or any officer or agent duly authorised by him in writing for that purpose may

enter at all reasonable times on the property of the Corporation for the purpose of inspecting their waterworks and the appliances used for filtering and treating the water of the Corporation and testing the recording apparatus thereat and may take any necessary gauging of the wells of the Corporation and may also take such samples of the water as he may think fit from any part or parts of the works of the Corporation Provided that before so doing the said medical officer or such other officer or agent as aforesaid shall give twenty-four hours' previous notice in writing to the Corporation of his intention to act under the provisions of this section. A.D. 1911.

51.—(1) If it shall be proved by the owner (which term shall include any lessee or occupier and the county council of East Sussex) that the pumping by the Corporation during the construction or use of any of the pumping stations by this Act authorised has caused any diminution of the supply of water from any well borehole pond pool spring stream or watering place or other source of supply existing at the date of the passing of this Act (such source of supply being situate within a radius of two miles from any of such stations in this section called "the protected area") the Corporation shall upon the written request of the owner of any such source of supply afford to the owner a supply of water equal to the amount of such diminution at such cost or rate (if any) as that the total cost to the owner of obtaining his full supply shall be the same (as nearly as may be) after as before the construction of such pumping stations the pumping from which has caused such diminution and upon such other terms as may be agreed or failing agreement may be settled by arbitration as herein-after provided. Provision where local sources of supply affected.

(2) For the purpose of affording a supply of water under this section within the protected area the Corporation may supply water beyond their limits of supply and carry out all works necessary for that purpose.

(3) The Corporation may if they think fit in lieu of making good the diminution of such supply deepen any affected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge therefor give the Corporation access and every facility for carrying out such deepening borings or headings and in the event of any such

A.D. 1911. deepenings borings or headings increasing the cost of obtaining or continuing to obtain such supply the Corporation shall pay to the owner the amount of such increase.

(4) If the Corporation do not afford such supply equal to the diminution as aforesaid they shall make compensation in money to any such owner for such diminution and they shall also make like compensation for any injury caused to such owner by the exercise by the Corporation of the powers conferred by the last preceding subsection the amount of such compensation to be settled in case of difference by arbitration as herein-after provided.

(5) The owner shall afford the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the source of supply in respect of which any claim is made under this section for the purpose of ascertaining particulars thereof and the level of the water therein.

(6) The Corporation shall not be liable in respect of any claim made by the owner under this section if he shall after reasonable demand have refused to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the source of supply in respect of which the claim is made for the purpose of ascertaining particulars thereof and the level of the water therein.

(7) Any expenses incurred by the county council of East Sussex under or for the purposes of this section shall be deemed to be expenses incurred for general county purposes.

(8) Any question or dispute arising under this section shall be referred to and determined by a single arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protec-
tion of Bex-
hill Water
and Gas
Company.

52. For the protection of the Bexhill Water and Gas Company (in this section herein-after called "the company") the following provisions shall unless otherwise agreed between the company and the Corporation have effect:—

(A) If it shall be proved by the company at any time that the water supply of the company at their present Buckholt or Wrestwood pumping stations shall be

diminished by reason of the operations of the Corporation below the respective daily amounts of two hundred and twenty thousand gallons in the case of the Buckholt pumping station or forty thousand gallons in the case of the Wrestwood pumping station then immediately after notice in writing from the company under the hand of their secretary the Corporation shall with all reasonable speed at their own expense make and thereafter maintain in working order all mains and works necessary for passing a supply of water from the Corporation's works to the company's works in manner herein-after provided : A.D. 1911.

- (B) The Corporation shall in such event and on such proof as aforesaid so long as the Corporation shall use any of the works by this Act authorised supply water through such mains to the company gratuitously in such quantity as may be necessary to supplement the quantity of water that can actually be raised by reasonable pumping in twenty-four hours from the company's said pumping stations to the respective daily amounts aforesaid :
- (c) In case of any such deficiency of water the company shall be entitled to have such deficiency made good by the Corporation under the provision contained in subsection (B) hereof within twenty-four hours after receipt by the Corporation of notice thereof in writing from the secretary of the company :
- (D) The aforesaid supplementary supply of water shall be delivered by the Corporation through the mains and works aforesaid into a reservoir or other receptacle to be provided by the company at or adjacent to their aforesaid pumping stations respectively (and at the level in either case of the engine house floor) and shall be of the same quality as pumped by the Corporation for their own use :
- (E) For the purpose of measuring the amount of water supplied by the Corporation the Corporation shall at their own expense construct maintain and keep in good repair and working order and renew when necessary at such point or points as may be agreed or failing agreement shall be settled by arbitration in manner

A.D. 1911.

herein-after provided suitable duplicate meters which shall at all reasonable times be open to the inspection and examination of the duly authorised officer of the company and such meters shall be tested at the expense of the Corporation twice at least in every year by a competent engineer and a copy of the certificate of such engineer as to the result of each such testing shall be sent to the company:

(F) In case and so long as the Corporation shall supply water as aforesaid to the company the Corporation and all persons authorised by them may at all reasonable times enter upon the said Buckholt and Wrestwood pumping stations of the company to examine the same and any defects or wants of reparation then and there found shall be repaired and made good forthwith by the company on notice in writing being given in that behalf:

(G) If any question or difference shall arise between the Corporation and the company under this section as to the deficiency of the water obtained or properly obtainable from the company's said pumping stations or the quantity or quality of the water supplied by the Corporation or as to the proper execution or maintenance of the works for the connexion of the two supplies herein-before provided for such question or difference shall be determined by an engineer to be agreed upon by the Corporation and the company or failing agreement as shall be nominated by the President of the Institution of Civil Engineers on the application of either the Corporation or the company and the decision of such engineer may be enforced in like manner as awards under the Arbitration Act 1889 can now by law be enforced.

Crown
rights.

53. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of
Act.

54. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (including the costs charges and expenses preliminary to and of and connected with the compliance with

the provisions of the Borough Funds Acts 1872 and 1903 with A.D. 1911.
respect to the Bill for this Act) or otherwise in relation thereto
as taxed and ascertained by the taxing officer of the House of
Lords or of the House of Commons shall be paid by the Cor-
poration out of the district fund and general district rate or
out of moneys borrowed under the powers of this Act and shall
be apportioned by the Corporation amongst the whole or part
of the several undertakings and departments under the control
of the Corporation and affected thereby as they may decide.

A.D. 1911.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED BY CORPORATION.

Township or Parish.	Numbers on deposited Plans.
Catsfield - - - - -	10 12
Crowhurst - - - - -	62 64
Bexhill - - - - -	1 3 4
Hastings - - - - -	1 2 3 5 6 7

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Hastings Corporation (Water and Finance) Act 1911 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Hastings (herein-after referred to as "the Corporation") in consideration of the sum of

pounds paid to the treasurer of the borough

by (herein-after referred

to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of

pounds shall be fully paid and satisfied with interest

for the same (subject as herein-after provided) at the rate of
per centum per annum from the

A.D. 1911.
1911

day of one thousand nine hundred
and until payment of the said principal sum such interest
to be paid half yearly on the day of
and the day of
in each year. And it is hereby agreed that the said
principal sum of pounds shall be repaid at the municipal offices in the said
borough [(subject as herein-after provided) on the
day of one thousand nine hundred and
[by]:

Provided always and it is hereby agreed and declared that the
before-mentioned time for repayment may be extended to such subse-
quent day or days and upon any such extension the before-mentioned
rate of interest may be altered to such other rate or rates of interest
as shall from time to time be agreed upon and mentioned in an
endorsement to be made hereon under the hand of the mayor and
town clerk of the borough for the time being respectively and that
upon any such endorsement being made whether relating to extension
of time only or to extension of time with alteration of rate of interest
the provisions thereof shall be incorporated herewith and shall operate
and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal
to be hereunto affixed this day of
one thousand nine hundred and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-
mentioned time for repayment of the within-mentioned principal sum
of is hereby extended to the
day of one thousand nine hundred and
[and the interest to be paid thereon on and from the
day of one thousand nine
hundred and is hereby declared to
be at the rate of per centum per annum].
Dated this day of one thousand
nine hundred and

A.D. 1911.

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
[of] in consideration
of the sum of
pounds paid to me by of
(herein-after referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number of the revenues of
the mayor aldermen and burgesses of the borough of Hastings bearing
date the day of]
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security subject
to the same conditions.

Dated this day of one thousand
nine hundred and

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